

20STCV11677 20STCV11677

County: los-angeles

Division: Civil Law and Motion

Department: 6

Hearing date: 2026-06-25

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CIT%2C6%2C06%2F25%2F2026

Source SHA-256: 57b3a55704f97129b91efa27009e1d39dc793f5bc05937363ca7542bdc6a133d

Case Number: 20STCV11677 Hearing Date: June 25, 2026 Dept: 6

CASE

NAME: Nobia

Joyce v. Shawn M. Millner, et al.

Defendants/Cross-Complainants'

Motion to Strike or Tax Trial Costs [MC-010]

TENTATIVE

RULING

The Court GRANTS in part Defendants/Cross-Complainants' Motion to Strike or Tax Trial Costs. The Court STRIKES the \$2,800.00 charge for the conference room and the \$1,301.68 for the deposition costs. The Court DENIES the Motion in all other respects.

Defendants are is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a quiet title action. On March 20, 2020, plaintiff Nobia Joyce (Plaintiff) filed this action against defendants Shawn M. Millner, the Shawn Marie Millner Revocable Trust (collectively, Millner), Laurence Todd (Todd) (Millner and Todd may be collectively referred to as Defendants), and Does 1 through 20, alleging causes of action for quiet title, partition, declaratory relief, and ejectment and damages.

On November 29, 2022, Defendants filed a cross-complaint against

Plaintiff, Stephen R. Golden, Stephen R. Golden & Associates, P.C., and Does 1 through 20. On February 2, 2024, Defendants filed the Second Amended Cross-Complaint (SACC) against the same parties, alleging causes of action for breach of the July 5, 2018 Settlement Agreement, breach of the covenant of good faith of the July 5, 2018 Settlement Agreement, fraud (No. 1), breach of the August 2018 Co-signor agreement, breach of the covenant of good faith breach [sic] of the August 2018 Co-tenant [sic] agreement, fraud (No. 2), assault, battery, false imprisonment, negligent infliction of emotional distress, intentional infliction of emotional distress, slander of title, fraud (No. 3), invasion of privacy, unjust enrichment, comparative indemnity, apportionment of fault, breach of the May 2023 Settlement Agreement, and breach of the covenant of good faith of the May 2023 Settlement Agreement.

On May 29, 2024, Defendants filed the operative Third Amended Cross-Complaint (TACC) against Plaintiff, Stephen R. Golden, Stephen R. Golden & Associates, P.C., and Does 1 through 20, alleging causes of action for battery, intentional infliction of emotional distress, slander of title, breach of contract, invasion of privacy, and unjust enrichment. On August 27, 2024, the Court dismissed cross-defendants Stephen R. Golden and Stephen R. Golden & Associates, P.C., from the TACC without prejudice.

On August 28, 2024, Plaintiff dismissed the First and Second Causes of Action for quiet title and partition as to Defendant Todd without prejudice.

On March 5, 2026, Plaintiff dismissed Todd from the complaint.

From March 17, 2026, through March 26, 2026, a jury trial was held. The jury issued a verdict in favor of Plaintiff on her ejectment claim and against Defendant Millner. The jury also issued a verdict in favor of Plaintiff on all claims in the TACC and against Defendants.

On April 22, 2026, the Court entered judgment according to the jury's verdict.

On May 4, 2026, Plaintiff filed a Memorandum of Costs. On May 14, 2026, Defendants moved to strike or tax trial costs. On June 8, 2026, Plaintiff opposed the Motion. On June 17, 2026, Defendants replied to the Opposition.

LEGAL

STANDARD

(a)

Claiming costs

(1) Trial

costs

A

prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case.

...

(b)

Contesting costs

(1) Striking

and taxing costs

Any notice

of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum. If the cost memorandum was served by mail, the period is extended as provided in Code of Civil Procedure section 1013. If the cost memorandum was served electronically, the period is extended as provided in Code of Civil Procedure section 1010.6(a)(3).

(2) Form

of motion

Unless

objection is made to the entire cost memorandum, the motion to strike or tax costs must refer to each item objected to by the same number and appear in the same order as the corresponding cost item claimed on the memorandum of costs

and must state why the item is objectionable.

(3) Extensions of time

The party claiming costs and the party contesting costs may agree to extend the time for serving and filing the cost memorandum and a motion to strike or tax costs. This agreement must be confirmed in writing, specify the extended date for service, and be filed with the clerk. In the absence of an agreement, the court may extend the times for serving and filing the cost memorandum or the notice of motion to strike or tax costs for a period not to exceed 30 days.

(4) Entry of costs

After the time has passed for a motion to strike or tax costs or for determination of that motion, the clerk must immediately enter the costs on the judgment.

(Cal. Rules of Court, rule 3.1700,
bold in original.)

DISCUSSION

Summary of Arguments

Defendants argue that Plaintiff's Memorandum of Costs must be struck because the underlying March 2026 jury trial was void due to the trial court's lack of subject matter jurisdiction and violations of the mandatory stay under Code of Civil Procedure section 916. Defendants assert that the Court of Appeal retained exclusive jurisdiction over both the interlocutory partition judgment and the related referee-appointment order until the remittitur issued on March 25 and 26, 2026, making all trial proceedings, including the \$70,120 verdict, legally void. Defendants contend that the trial court compounded these errors by relying on a January 29, 2026 sua sponte order that attempted to fix fatal defects in the interlocutory judgment, despite lacking jurisdiction and never issuing corrected judgments. Defendants argue that the interlocutory judgment

remains permanently void under the law of the case because it awarded a collective 50% interest to a non-entity, i.e., “the Trust,” in violation of *Portico Mgmt. Grp., LLC v. Harrison* (2011) 202 Cal.App.4th 464 (*Portico*).

Based on these defects, Defendants maintain that no valid judgment exists to support a cost award, requiring the cost memorandum to be struck in its entirety.

Defendants

also argue that Plaintiff is judicially estopped from recovering any trial costs because she previously declared under penalty of perjury in Defendant’s 2025 bankruptcy case that her claim was limited to a 50% property interest and that she had no ejectment or loss of use claims. Defendants assert that Plaintiff used those statements to obtain an advantage in federal court, then reversed positions to pursue inconsistent claims at the state court trial. Defendants contend Plaintiff commingled time-barred 2024 bench trial expenses with 2026 jury trial expenses, failed to itemize any costs, and sought reimbursement for categories, including a \$2,800 conference room rental, that are not allowable or reasonable under Code of Civil Procedure section 1033.5. Defendants argue that Plaintiff sought a double recovery by including deposition and preparation expenses already awarded to Todd on May 13, 2026. Defendants further contend that the cost memorandum misidentifies the courthouse branch, provides no itemization, conflates separate legal capacities, and seeks costs already judicially allocated elsewhere. Defendants finally argue that the entire filing is procedurally void and must be struck or taxed to zero.

In

opposition, Plaintiff argues that Defendants’ core claim – that the trials and related nunc pro tunc orders are void – is meritless because both the trial court and the Court of Appeal have already rejected those jurisdictional challenges. Plaintiff contends the conference room rental cost should be allowed because it was necessary for coordinating a multi-attorney pro bono trial team, particularly as two attorneys traveled from distant cities and the team required consistent workspace to prepare effectively. Plaintiff maintains that clerical errors such as listing the wrong courthouse on the cost memorandum are insignificant because the correct case number, judge, and department were provided, and Defendants suffered no prejudice. Plaintiff further argues that worksheets detailing costs are not required unless specific cost items are challenged, and other than the conference room, Defendants raised only generalized objections. Plaintiff also asserts that costs from the 2024 bench trial are not time barred because the final judgment was not entered

until 2026, and that no “double subsidy” exists, since each party’s deposition costs relate to different litigation needs.

In

reply, Defendants argue that Plaintiff’s opposition ignores the central, fatal defects that render the entire cost request void, namely, that the second-phase jury trial was conducted while the Court of Appeal still retained exclusive jurisdiction, making all proceedings before the remittitur legally void. Defendants maintain that the trial court’s January 29, 2026 sua sponte order improperly attempted to modify an already-appealed judgment, further violating the mandatory stay under Code of Civil Procedure section 916 and tainting all subsequent trial activity. Defendants also contend that Plaintiff cannot recover costs because the underlying judgment is unenforceable, as Plaintiff failed to name the indispensable trustee in any operative complaint, meaning the quiet title and partition judgment is void and cannot support a prevailing party cost award. Defendants argue that Plaintiff’s lump sum cost memorandum is defective because it fails to itemize expenses between the valid and void trial phases or between separate parties and claims, preventing the Court from determining which costs are legally recoverable. Defendants further assert that Plaintiff’s cost demands are premature in a partition action, where all litigation expenses must be allocated through the partition referee’s final accounting after the property sale. Finally, Defendants argue that the statute of limitations now bars any attempt to bind the trustee, cementing the judgment’s void status and requiring that Plaintiff’s cost bill be reduced to zero.

Analysis

The Court finds most of Defendants’ motion unpersuasive and unavailing. Plaintiff only needed to provide a verified memorandum of costs and was not required to provide an itemization worksheet. (See *Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1267 (Jones) [party claiming costs does not need to provide documentary evidence of claimed costs unless those costs have been put in issue via a motion to tax costs].) Plaintiff provided a verified Memorandum of Costs and therefore satisfied her preliminary burden. (Memorandum of Costs (5/4/26).) Defendants then bore the burden of identifying the costs to be challenged and providing evidence to show that Plaintiff’s claimed costs were not reasonable. (See *Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774 (Ladas) [party seeking to tax costs generally bears burden of showing that the costs were not reasonably

necessary].)

Defendants did not provide sufficient evidence to support striking the entire cost memorandum. First, Defendants' basis for attacking the entire cost memorandum is that the jury trial verdict is void due to the Court's purported lack of jurisdiction and violation of stay under Code of Civil Procedure section 916. Defendants' arguments are incorrect. Code of Civil Procedure section 916, subdivision (a), expressly states that, "the trial court may proceed upon any other matter embraced in the action and not affected by the judgment or order." (Code Civ. Proc., § 916, subd. (a).) The interlocutory judgment only affected Plaintiff's quiet title and partition claims. (Corrected Interlocutory Judgment (11/5/24).) The jury trial addressed only Plaintiff's ejectment claim and Defendants' cross-claims. (Special Verdict (3/26/26).) The Court's clerical correction to the interlocutory judgment had no bearing on the jury trial.

Second, courts may make clerical corrections to judgments at any time. (See Code Civ. Proc., § 473, subd. (d).) "[a] court of general jurisdiction has the power, after final judgment, and regardless of lapse of time, to correct clerical errors or misprisions in its records, whether made by the clerk, counsel, or the court itself, so that the records will conform to and speak the truth." [Citation.] 'The correction may be made even though an appeal has been taken and is pending. [Citations.] And it may also be made after affirmance of the judgment on appeal.' [Citation.]) (In re Marriage of Boblitt (2014) 223 Cal.App.4th 1004, 1028, italics in original.) The Court's January 29, 2026 correction to the interlocutory judgment merely provided the correct name for Millner as trustee. (Minute Order (1/29/26).) Also, contrary to Defendants' contention, the interlocutory judgment on file reflects the clerical correction. (Corrected Interlocutory Judgment (11/5/24).)

Third, Defendants' contentions regarding Portico are unavailing. The Court of Appeal in Galdjie v. Darwish (2003) 113 Cal.App.4th 1331 affirmed the trial court judgment even though the complaint failed to name the trust or specify that the defendants were being sued in their capacities as trustees. (See id. at pp. 1342, 1350.) Here, the Complaint names both Millner and her trust. (See generally, Compl.) Moreover, Millner answered the Complaint both individually and in her capacity as trustee and otherwise participated throughout this action in both capacities. (See Answer (11/28/22).)

Finally,

the Court of Appeal affirmed the interlocutory judgment in favor of Plaintiff and against Defendants. (Appeal – Opinion Receiver (10/28/25); Remittitur (3/25/26).) Defendants' arguments that the judgment is void are therefore without merit.

Notwithstanding the foregoing, the Court finds that the conference room charge was not reasonably incurred. (Code Civ. Proc., § 1033.5, subd. (c)(4).) Plaintiff presented evidence showing that it facilitated the handling of the trial in this matter given the involvement of pro-bono attorneys from different locales throughout California who assisted Plaintiff in this matter. (Gaskins Decl., ¶¶ 2-3; Pallack Decl., ¶ 2.) However, it is unclear to the Court why so many attorneys, i.e., three from Morrison and Foerster and at least one from Neighborhood Legal Services, needed to be involved with the trial of this case. The Court finds that the rental of a conference room to provide working space for attorneys was not reasonably incurred for the trial of this case and that Plaintiff cannot pass on the overhead expense to Defendants as a reasonable cost of litigation. The Court will therefore STRIKE the \$2,800.00 charge for the conference room.

The Court also finds Plaintiff failed to provide evidence showing the deposition costs were reasonably incurred. Defendants specifically challenged those costs, so Plaintiff needed to provide evidence showing they were reasonably incurred. (Jones, *supra*, 63 Cal.App.4th at p. 1265 [burden shifts to person claiming costs to provide documentary evidence substantiating the claimed costs once they are put in issue via a motion to tax costs].) Plaintiff did not provide any such evidence. It seems Plaintiff is arguing that those costs were incurred taking Defendants' depositions, but Plaintiff provided no evidence showing that those were the deposition costs claimed. (See Opp., 3:15-21.) The Court will therefore STRIKE the \$1,301.68 for deposition costs.

Defendants did not challenge any other specific items, and the Court otherwise finds Defendants' remaining arguments unpersuasive. Nothing in the bankruptcy related filing from Plaintiff says anything about Plaintiff not having evidence, not having claims for ejectment or loss of use, or otherwise waiving those claims. (Bowman Decl., Ex. C.) Defendants' argument regarding the caption page on the cost memorandum is also unavailing. The clerk's office corrected the mistake after Plaintiff filed it. (Memorandum of Costs (5/4/26).) There is no prejudice to Defendants because the cost memorandum otherwise

provided adequate notice of Plaintiff's claimed costs, which Defendants addressed by filing this Motion. As for the purported failure to apportion liabilities, that is unavailing because Plaintiff prevailed against both Defendants at trial by defeating Defendants' cross-claims, in addition to prevailing on her ejectment claim against Millner.

Furthermore, "until a final judgment is entered in the trial itself neither party is entitled to costs. [Citation.]" (Muller v. Reagh (1960) 179 Cal.App.2d 814, 815.) Final judgment in this case was not entered until April 22, 2026. (Judgment (4/22/26).) Plaintiff therefore could not have obtained costs before the final judgment was entered. Also, Plaintiff correctly notes that Todd was awarded costs for his taking of Plaintiff's deposition before the September 2024 trial. (Order re Court Ruling (5/13/26).)

Finally, Defendants' statute of limitations arguments in their reply papers were improper since these were new arguments not raised in their moving papers. New arguments are generally not permitted on reply; otherwise, a further hearing would be required to permit the opposing party to respond. (Jay v. Mahaffey (2013) 218 Cal.App.4th 1522, 1537-1538; see also Alfaro v. Cmty. Hous. Improvement Sys. & Plan. Assn., Inc. (2009) 171 Cal.App.4th 1356, 1393, fn. 23 ["The general rule is that points raised for the first time in a reply brief will not be considered unless good cause is shown for the failure to present them before." [Citation.]].) Even then, the arguments fail for the same reasons set forth above, namely that the Court of Appeal in Galdjie v. Darwish, supra, 113 Cal.App.4th 1331 already rejected the argument regarding a complaint that fails to name the defendants in their capacities as trustees. (Id. at pp. 1342, 1350.)

Based on the foregoing, the Court GRANTS in part the Motion. The Court STRIKES the \$2,800.00 charge for the conference room and the \$1,301.68 for the deposition costs. The Court DENIES the Motion in all other respects.

CONCLUSION

The Court GRANTS in part Defendants/Cross-Complainants' Motion to Strike or Tax Trial Costs. The Court STRIKES the \$2,800.00 charge for the conference room and the \$1,301.68 for the deposition costs. The Court DENIES the Motion in all other respects.

Defendants are is ordered to give
notice of the Court's ruling within five calendar days of this order.